



CHAPTER xlii

An Act to authorise the Tees Valley and Cleveland Water Board to construct additional waterworks and to acquire lands to amend provisions relating to the discharge of compensation water by that Board and other provisions and for other purposes. [29th July 1959.]

WHEREAS—

(1) By the Tees Valley and Cleveland Water Acts and Orders 1907 to 1959 the Tees Valley and Cleveland Water Board (in this Act referred to as “the Board”) are the authorised undertakers for the supply of water and supply water within a large area in the counties of Durham and of the North Riding of the county of York including the boroughs of Redcar Stockton-on-Tees and Thornaby-on-Tees and in the county borough of Middlesbrough:

(2) With a view to ensuring that the Board shall be and continue to be in a position to meet the demands made upon them for the supply of water it is expedient that the Board should be empowered to construct the new works described in this Act and to take divert and impound water by means thereof to acquire lands for the purposes thereof and to abstract water from the river Tees:

(3) By section 36 (Compensation for water taken from river Lune) and section 37 (Compensation for water taken from river Balder) of the Tees Valley Water (Consolidation) Act 1907 the Board are required to discharge into the rivers Lune and Balder quantities of compensation water not less than four thousand three hundred and fifty gallons per minute and two thousand

three hundred and twenty-five gallons per minute respectively and by section 12 (Further provisions as to compensation water) of the Tees Valley Water Act 1953 it is provided that the provisions of the said sections 36 and 37 shall be deemed to have been accepted by all persons interested as full compensation for all waters impounded by the Board by means of their Blackton Hury and Grassholme reservoirs authorised by the said Act of 1907 and their Selset Reservoir authorised by the said Act of 1953 (and now in course of construction) subject to a proviso that if the Board increase the storage capacity of any of the said reservoirs or construct any additional reservoir in the gathering grounds of the rivers Lune or Balder the minimum quantities of water to be discharged by the Board under the provisions of the said sections 36 and 37 respectively shall be increased so as to secure that a quantity of water equal to one-quarter of the reliable yield of the said gathering grounds is discharged into the said rivers:

(4) Having regard to the works proposed to be constructed under the powers of this Act and the manner of operation of the same as provided in this Act it is expedient to repeal the provisions of the said section 12 and other enactments and to substitute the provisions contained in this Act:

(5) Estimates have been prepared for the purposes hereinafter mentioned and such estimates are as follows:—

	£
For the purchase of lands and easements under the powers of this Act	27,000
For the construction of the works authorised by this Act	4,275,000
	£4,302,000

(6) The works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years:

(7) It is expedient that the other powers contained in this Act should be conferred and that the other provisions of this Act should be enacted:

(8) The objects of this Act cannot be attained without the authority of Parliament:

(9) Plans and sections showing the lines situations and levels of the works authorised by this Act and a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act have been duly deposited in the office of the

Clerk of the Parliaments and in the Private Bill Office House of Commons and with the clerk of the county council of the administrative county of the North Riding of the county of York and the town clerk of the county borough of Darlington which plans sections and book of reference are in this Act respectively referred to as “the deposited plans” “the deposited sections” and “the deposited book of reference”:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen’s most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I
PRELIMINARY

1.—(1) This Act may be cited as the Tees Valley and Cleveland Water Act 1959. Short and collective titles.

(2) The Tees Valley and Cleveland Water Acts and Orders 1907 to 1958 and this Act may be cited together as the Tees Valley and Cleveland Water Acts and Orders 1907 to 1959.

2. This Act is divided into Parts as follows:—

Division of
Act into
Parts.

Part I.—Preliminary.

Part II.—Works.

Part III.—Lands.

Part IV.—Financial provisions.

Part V.—Miscellaneous.

3. The following enactments (so far as the same are applicable for the purposes of and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act:— Incorporation of Acts.

(a) the Lands Clauses Acts (except sections 92 127 to 133 150 and 151 of the Lands Clauses Consolidation Act 1845 and section 5 of the Lands Clauses Consolidation Acts Amendment Act 1860):

Provided that—

(i) the bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be sufficient without the addition of the sureties mentioned in that section; and

(ii) the expression “the promoters of the undertaking” shall be construed to mean the Board;

(b) section 16 of the Railways Clauses Consolidation Act 1845 and the provisions of that Act with respect to the temporary occupation of lands near the railway during the construction thereof:

PART I
—cont.

Provided that—

(i) for the purposes of the said provisions of the Railways Clauses Consolidation Act 1845 the expression “the railway” shall be construed to mean the works authorised by this Act the expression “the centre of the railway” shall be construed to mean the centre line of the embankment or dam of the Balderhead Reservoir (Work No. 1) and the expression “the company” shall be construed to mean the Board;

(ii) any electrical works or apparatus erected laid down maintained or used under the said section 16 as incorporated by this section shall be so erected or laid down and so maintained and used as to prevent interference with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line;

(c) the following provisions of the Third Schedule to the Water Act 1945:—

Part II (Works and lands) except sections 7 and 9;

Part IV (Minerals underlying waterworks);

In Part XVI (General and miscellaneous) sections 82 83 85 86 87 and 94:

Provided that as incorporated by this section—

- (i) section 2 of the said Third Schedule shall have effect as if for the words “the plans submitted to the Minister” there were substituted the words “the deposited plans” and for the words “the said plans” wherever they occur there were substituted the words “the deposited sections”;
- (ii) section 4 of the said Third Schedule shall have effect as if for the words “any land for the time being held by them in connection with their water undertaking” there were inserted the words “the lands delineated on the deposited plans” and after the word “buildings” there were inserted the words “roads embankments piers bridges”;
- (iii) section 12 of the said Third Schedule shall have effect as if for the words “after this section is incorporated with their enactments” there were substituted the words “under the special Act” for the words “all existing pipes or other conduits for the collection passage or distribution of water and underground works belonging to them” there were substituted the

words "all such pipes or other conduits or underground works" and as if the words "for the time being belonging to them" were omitted.

PART I
—cont.

4.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partly incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction. Interpretation.

(2) In this Act unless the subject or context otherwise requires the following expressions have the meanings hereby respectively assigned to them:—

"Act of 1907" means the Tees Valley Water (Consolidation) Act 1907;

"Act of 1953" means the Tees Valley Water Act 1953;

"Balder works" means the works of the Board in the valley of the river Balder comprising the Blackton and Hury reservoirs authorised by the Act of 1907 and (as from the completion thereof) the Balderhead Reservoir (Work No. 1);

"Board" means the Tees Valley and Cleveland Water Board;

"Broken Scar pumping station" means the pumping station (Work No. 2) authorised by the Order of 1948 as reconstructed enlarged or extended from time to time and includes the intake (Work No. 1) so authorised and (as from the completion thereof) the intake or intakes and aqueduct or aqueducts (Work No. 3) authorised by this Act;

"Broken Scar weir" means the weir (Work No. 1) authorised by section 78 (Power to construct weir) of the Darlington Corporation Act 1930 as reconstructed altered or added to from time to time in manner agreed or determined under section 7 (Appointment of advisory committee in respect of existing weir and the banks of the Tees) of the Order of 1948;

"Darlington Corporation" means the mayor aldermen and burgesses of the county borough of Darlington;

"day" means a day of twenty-four hours reckoned from nine o'clock in the morning;

"Lands Clauses Acts" means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 by Part V of the Town and Country Planning Act 1947 by the Lands Tribunal Act 1949 by the Town and Country Planning Act 1954 by the Town and Country Planning Act 1959 and by this Act;

PART I
—cont.

“Lune works” means the works of the Board in the valley of the river Lune comprising the Grassholme Reservoir authorised by the Act of 1907 and (as from the completion thereof) the Selset Reservoir authorised by the Act of 1953;

“Minister” means the Minister of Housing and Local Government;

“North Riding” and “North Riding County Council” mean respectively the administrative county of the North Riding of the county of York and the county council of that administrative county;

“Order of 1948” means the Tees Valley Water Order 1948;

“prescribed date” means the thirty-first day of December nineteen hundred and sixty-six or such later date as may be prescribed by an order made by the Minister under the Water Act 1945;

“undertaking” means the undertaking of the Board as from time to time authorised.

(3) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

(4) Unless the context otherwise requires any reference in this Act to a work identified by the number of such work shall be construed as a reference to the work of that number authorised by this Act.

(5) For the purposes of this Act the Balderhead Reservoir (Work No. 1) shall be deemed to be completed and first filled when the water level in the said reservoir has on first filling reached the level of one thousand and sixty feet above ordnance datum.

PART II

WORKS

Power to
construct
works.

5. Subject to the provisions of this Act the Board may make and maintain in the lines and situations and according to the levels shown on the deposited plans and sections and upon the lands delineated on those plans and described in the deposited book of reference the following works in the North Riding and in the county borough of Darlington:—

In the North Riding—

Work No. 1 An impounding reservoir (to be called “the Balderhead Reservoir”) in the parishes of Cotherstone and Hunderthwaite in the rural district of Startforth to be formed by means of an embankment or dam across the river Balder at a point five hundred yards

or thereabouts upstream from Blackton Bridge near to the western end of the Blackton Reservoir of the Board commencing in the said parish of Hunderthwaite at a point four hundred and sixty-five yards or thereabouts from the left bank of the said river and terminating in the said parish of Cotherstone at a point five hundred and forty-five yards or thereabouts from the right bank of the said river:

In the county borough of Darlington—

6.—(1) The Board may stop up the footpaths or portions thereof in the rural district of Startforth in the North Riding referred to in the next following table so far as the same are shown on the deposited plans as intended to be stopped up and thereupon all rights of way over the said footpaths or portions thereof shall be extinguished:—

Letters on plan denoting footpath to be stopped up	Parish	Number on plan of enclosure traversed by footpath
a—c—h	Hunderthwaite	15 18 20 21 28 29 30 34 36 40 42 45 55 60 and 66.
b—d	Hunderthwaite	29 30 and 86.
f—m	Hunderthwaite	40 74 and 86.
g—l	Hunderthwaite	49 50 51 58 59 and 60.
i—k	Hunderthwaite	50 57 and 63.
d—e—n	Cotherstone	1 2 3 and 5.
m—q	Cotherstone	2 5 6 7 8 16 17 and 20.
o—p	Cotherstone	2.

PART II
—cont.

(2) The Board may also stop up so much of any other footpaths in the parishes of Hunderthwaite and Cotherstone in the rural district of Startforth as may be situate on any lands acquired by the Board under the powers of section 23 (Power to acquire lands) of this Act and thereupon all public rights of way over any such portions of footpaths shall be extinguished.

(3) No portion of any footpath shall be stopped up under the powers of subsection (2) of this section without the consent of the North Riding County Council:

Provided that such consent shall not be unreasonably withheld and any question whether it is unreasonably withheld shall be determined by the Minister.

(4) No portion of any footpath shall be stopped up under the powers of this section until the Board are owners in possession of all lands on both sides of such portion except so far as the owners lessees and occupiers of those lands may otherwise agree.

Power to
divert
footpath.

7.—(1) The Board may divert the portion of the footpath in the parish of Cotherstone in the rural district of Startforth in the North Riding shown on the deposited plans as intended to be diverted and thereon denoted by the letters r to s traversing the enclosures numbered 13 14 26 and 30 in the said parish and may stop up and cause to be discontinued as a public highway so much of the said footpath as will be rendered unnecessary by the diversion thereof under the powers of this Act.

(2) Notwithstanding anything in subsection (1) of this section the said portion of footpath shall not be stopped up under the powers of this section until the new footpath to be substituted therefor is completed to the satisfaction of the North Riding County Council and is open for public use or in the case of difference between the Board and the North Riding County Council until the Minister shall have certified that the new footpath has been completed to his satisfaction and is open for public use.

(3) As from the date of completion to the satisfaction of the North Riding County Council of the new footpath or as from the date of the said certificate (as the case may be) all rights of way over or along the said portion of footpath so stopped up shall be extinguished and the Board may appropriate and use for the purposes of the undertaking the site and soil thereof so far as they are owners in possession of the land on both sides thereof.

(4) The new footpath shall be repairable by the authority or person by which or by whom the said portion of footpath so stopped up was repairable before its diversion and be subject to the same public rights of way as were exercisable over the said portion of footpath before its diversion.

8. The works authorised by this Act shall for all purposes form part of the undertaking.

Works to
form part of
undertaking.

9. If the works authorised by section 5 (Power to construct works) of this Act are not completed within the period expiring on the prescribed date then as from the expiration of that period the powers conferred by this Act for the construction of those works or otherwise in relation thereto shall cease to be exercisable except as to so much thereof as shall then be completed:

Period for
completion of
works.

Provided that subject to the provisions of this Act any of the said works may be altered reconstructed or renewed as occasion may require.

10.—(1) Subject to the provisions of the Act of 1907 the Act of 1953 and this Act the Board may divert take impound appropriate and use for the purposes of the undertaking the waters of the rivers Lune and Balder and all such other feeders and tributaries as may be intercepted by means of the Lune works and the Balder works and all waters found in on or under any lands acquired by the Board for the purpose of any of their reservoirs or their Lartington tank and filter beds authorised by the Act of 1907:

Powers to
take waters
from rivers
Lune and
Balder and
other streams.

Provided that the Board shall not take from the gathering grounds of the rivers Lune and Balder for the purposes of supply—

- (i) up to the date of the completion and first filling of the Selset Reservoir authorised by the Act of 1953 a greater quantity of water than nineteen million two hundred and twenty-four thousand gallons in any day of twenty-four hours reckoned from mid-day; and
- (ii) on and from the completion and first filling of the said Selset Reservoir a greater quantity of water than thirty-two million gallons in any day.

(2) Section 35 (Gauge of water taken for supply) and section 46 (Report of quantities of water taken by Board) of the Act of 1907 shall until they are repealed by virtue of the Act of 1953 have effect as if for the references in those sections to the Act of 1907 there were substituted references to this section.

11. Subject to the provisions of this Act the Board may raise or lower or regulate the water or the level or the flow of water in the river Balder and all such other feeders and tributaries as may be intercepted by means of the Balderhead Reservoir (Work No. 1) or any of them to such extent as may be necessary for the purpose of the construction or operation of the works authorised by this Act or other the purposes of this Act.

Powers to
regulate
waters.

PART II

—cont.

Discharge of
water after
completion of
Selset
Reservoir.

12. On and from the date of the completion and first filling of the Selset Reservoir authorised by the Act of 1953 and up to the date of the completion and first filling of the Balderhead Reservoir (Work No. 1) the Board may discharge from the Lune works and the Balder works or any of such works into the rivers Lune and Balder or either of such rivers in addition to the quantities of compensation water which they shall from time to time be required to discharge into those rivers or any water overflowing from any of those works in excess of such quantities of compensation water such quantities of water as they may from time to time consider necessary for the purpose of maintaining at any time when they take water under section 14 (Power to take water from river Tees at Broken Scar) of this Act such rate of flow in the river Tees over the Broken Scar weir as is prescribed by paragraph (a) of subsection (2) of the said section 14.

Discharge of
water after
completion of
Balderhead
Reservoir.

13.—(1) Subject as provided in subsection (3) of this section on and from the date of the completion and first filling of the Balderhead Reservoir (Work No. 1) the Board shall discharge from the Lune works and the Balder works or any of such works into the rivers Lune and Balder or either of such rivers such quantities of water as may from time to time be necessary for the purpose of ensuring as nearly as may be that the rate of flow in the river Tees over the Broken Scar weir shall not be less than the difference between a rate of forty million gallons per day and the rate at which they take water from time to time at their Broken Scar pumping station under section 14 (Power to take water from river Tees at Broken Scar) of this Act:

Provided always that if at any time the Board do not take any water at their said pumping station they shall discharge as aforesaid such quantities of water as may from time to time be necessary for the purpose of ensuring as nearly as may be that the rate of flow in the river Tees over the Broken Scar weir shall not be less than the rate of forty million gallons per day.

(2) Subject as aforesaid on and from the date of the completion and first filling of the Balderhead Reservoir (Work No. 1) the Board may so discharge from the Lune works and the Balder works or any of them in addition to any water overflowing from any of those works such quantities of water as they may from time to time consider necessary for the purpose of maintaining—

(a) at any time when they take water at their Broken Scar pumping station under the said section 14 at a rate exceeding thirty million gallons per day such rate of flow in the river Tees over the Broken Scar weir as is prescribed by paragraph (a) of subsection (2) of the said section 14; and

(b) at any time when they take water at their Broken Scar pumping station under the said section 14 at a rate exceeding thirty-five million gallons per day such rate of flow in the river Tees over the Broken Scar weir as may be required under paragraph (b) of subsection (2) of the said section 14.

(3) Notwithstanding anything in subsections (1) and (2) of this section on and from the date of the completion and first filling of the Balderhead Reservoir (Work No. 1) the Board shall at all times discharge water in a uniform and continuous flow—

- (a) from the Lune works into the river Lune as compensation for the waters of that river impounded by means of the Lune works at a rate of not less than six million two hundred and sixty-four thousand gallons per day; and
- (b) from the Balder works into the river Balder as compensation for the waters of that river impounded by means of the Balder works at a rate of not less than three million three hundred and forty-eight thousand gallons per day.

14.—(1) Subject to the provisions of this section the Board may take and divert by means of their Broken Scar pumping station and use and appropriate for the purposes of the undertaking such quantities of water from the river Tees as they may from time to time require at a rate not exceeding—

- (a) as from the passing of this Act fifteen million gallons per day;
- (b) on and from the date of the completion and first filling of the Selset Reservoir authorised by the Act of 1953 thirty-five million gallons per day; and
- (c) on and from the date of the completion and first filling of the Balderhead Reservoir (Work No. 1) forty million gallons per day.

(2) Notwithstanding anything in subsection (1) of this section—

- (a) the Board shall not take water from the river Tees by means of their Broken Scar pumping station at such a rate as will reduce the rate of flow in the said river over the Broken Scar weir at any time—
 - (i) up to the date of the completion and first filling of the Balderhead Reservoir (Work No. 1) or the prescribed date whichever shall be the earlier date below the rate of five million gallons per day; and
 - (ii) on and from that date below the rate of ten million gallons per day; and

PART II
—cont.

- (b) on and from the date of the completion and first filling of the Balderhead Reservoir (Work No. 1) the Board shall not take water from the river Tees by means of their Broken Scar pumping station at any rate exceeding thirty-five million gallons per day so as to increase the rate of abstraction above the said rate of thirty-five million gallons per day by more than one-half of the amount by which the rate of flow in the river Tees over the Broken Scar weir (at any time when water is so taken at such increased rate) exceeds the rate of ten million gallons per day.

Provisions
applicable to
foregoing
sections of
Act.

15.—(1) If the Board—

- (a) take from the gathering grounds of the rivers Lune and Balder for the purposes of supply a greater quantity of water than the quantity authorised for the time being by section 10 (Powers to take waters from rivers Lune and Balder and other streams) of this Act; or
- (b) fail to comply with the requirements of subsection (1) or subsection (3) of section 13 (Discharge of water after completion of Balderhead Reservoir) of this Act; or
- (c) take any water from the river Tees contrary to the provisions of subsection (1) or subsection (2) of section 14 (Power to take water from river Tees at Broken Scar) of this Act;

they shall without prejudice to their civil liability (if any) to a person aggrieved be liable in the case of any such offence—

- (i) on summary conviction to a fine not exceeding fifty pounds in respect of each day on which the offence has been committed or has continued; and
- (ii) on conviction on indictment to a fine not exceeding five hundred pounds in respect of each such day:

Provided that the Board shall not be under any liability under the foregoing provisions of this section in respect of any such failure as is therein referred to if such failure is due to unavoidable accident or other unavoidable cause.

(2) On and from the date of the completion and first filling of the Balderhead Reservoir (Work No. 1) the provisions of subsection (1) and subsection (3) of section 13 (Discharge of water after completion of Balderhead Reservoir) of this Act and the foregoing provisions of this section shall be deemed to have been accepted by all persons interested as full compensation for all waters which the Board may impound by means of the Lune works and the Balder works:

Provided that if after the completion of the Balderhead Reservoir (Work No. 1) the storage capacity of the Lune works or the Balder works or any of the reservoirs comprised in those works

be increased or an additional reservoir or reservoirs be constructed by the Board in the gathering grounds of the river Lune or the river Balder the quantities of compensation water which the Board are required to discharge into the river Lune and the river Balder under the provisions of subsection (3) of the said section 13 shall be increased so as to secure that the aggregate quantity of compensation water so to be discharged into the said rivers shall not be less than one quarter of the reliable yield from the said gathering grounds.

16.—(1) The Minister may on the application of the Board the Darlington Corporation the Wear and Tees River Board or the Tees Conservancy Commissioners from time to time make orders under the Water Acts 1945 to 1958 varying the rate of flow of ten million gallons per day referred to in subsection (2) of section 14 (Power to take water from river Tees at Broken Scar) of this Act to such rate as the Minister may determine not being less than ten million gallons per day. Making of orders by Minister.

(2) Any order which the Minister is authorised to make in pursuance of this section may contain such incidental consequential or supplementary provisions as the Minister thinks necessary or expedient and in relation to any such order—

- (a) the provisions of Part I of the First Schedule to the Water Act 1945 shall apply and the order shall in the circumstances specified in paragraph 8 of the said schedule be subject to special parliamentary procedure;
- (b) the area affected by the order shall be deemed to include the limits of supply of the Board as from time to time authorised the county borough of Darlington the area within the jurisdiction of the Wear and Tees River Board and the area within the jurisdiction of the Tees Conservancy Commissioners.

(3) The proviso (a) to subsection (1) of section 33 of the Water Act 1945 shall not apply to an order made in pursuance of this section.

(4) Nothing in this section shall prejudice or affect the rights of the Board to apply for any order under the Water Acts 1945 to 1958.

17.—(1) Within one month after the completion and first filling of the Balderhead Reservoir (Work No. 1) the Board shall to the reasonable satisfaction of the Darlington Corporation the Tees Conservancy Commissioners and the Wear and Tees River Board provide and maintain— As to gauges etc.

- (a) gauges (with suitable automatic recording instruments and other apparatus) for the purpose of measuring and recording—

- (i) the rate of flow of any water from time to time overflowing from the said reservoir;

PART II
—cont.

(ii) the quantity of water from time to time discharged by the Board from the said reservoir not being water flowing over the spillway thereof; and

- (b) a recorder (with suitable automatic recording instruments and other apparatus) at the embankment or dam of the said reservoir for the purpose of measuring daily the depth of water in the said reservoir;

and the provisions of subsections (2) to (7) of section 49 (As to recording water taken and depths of reservoirs) of the Act of 1953 shall with any necessary modifications apply in relation to the said Balderhead Reservoir and to the gauges recording instruments and recorder so provided as they apply in relation to the reservoirs gauges recording instruments and recorders specified therein.

(2) (a) Water discharged by the Board from the Lune works or the Balder works in pursuance of section 12 (Discharge of water after completion of Selset Reservoir) or section 13 (Discharge of water after completion of Balderhead Reservoir) of this Act shall be so discharged as to flow over or through the existing gauges constructed and maintained in pursuance of section 39 (Gauge to be constructed on river Lune) or section 40 (Maintenance of gauge on river Balder) of the Act of 1907 or (after the same shall have been constructed) the new gauges constructed in pursuance of section 13 (Replacement of gauges) of the Act of 1953.

(b) In relation to water discharged as aforesaid section 50 (Record of quantities of water taken by Board) of the Act of 1953 shall have effect—

- (i) up to the date of the completion and first filling of the Balderhead Reservoir (Work No. 1) as if in subsection (1) thereof after the words “compensation water” there were inserted the words “and any water in pursuance of section 12 (Discharge of water after completion of Selset Reservoir) of the Tees Valley and Cleveland Water Act 1959”; and
- (ii) on and from that date as if in subsection (1) thereof for the said words “compensation water” there were substituted the words “water in pursuance of section 13 (Discharge of water after completion of Balderhead Reservoir) of the Tees Valley and Cleveland Water Act 1959”.

(3) As from the date of the completion and first filling of the Selset Reservoir authorised by the Act of 1953—

- (a) sub-paragraph (i) of paragraph (a) of subsection (1) and subsection (2) of section 49 (As to recording water taken and depths of reservoirs) and subsection (1) of section 50 (Record of quantities of water taken by Board) of the Act of 1953 shall have effect as if for the

word “mid-day” wherever it occurs in those provisions there were substituted the words “nine o’clock in the morning”;

(b) the expressions “day” and “daily” wherever they occur in the Act of 1907 and the Act of 1953 in relation to quantities of water discharged or taken or to be discharged or taken by the Board shall be construed in accordance with the meaning of the expression “day” as defined in this Act; and

(c) subsection (2) of the said section 49 and subsection (1) of the said section 50 shall have effect as if for the words “the end of every month deliver statements in respect of that month” where they occur in those subsections there were substituted the words “the expiration of every period of fourteen days deliver statements in respect of that period”.

(4) For the avoidance of doubt the several references in section 44 (Board to provide recording instruments at their gauges etc.) of the Act of 1907 and section 50 (Record of quantities of water taken by Board) of the Act of 1953 to the pumping station of the Board at Broken Scar shall be construed to mean the Broken Scar pumping station as defined in this Act.

18.—(1) It shall be lawful for the Board to divert and alter the course of any river stream watercourse or ditch on any lands acquired or appropriated by them for the purposes of the works authorised by this Act and the existing bed banks and channel of the diverted portion of any such river stream watercourse and ditch together with all riparian rights shall by virtue of this Act vest in the Board and may be appropriated and used by the Board for the purposes of or in connection with those works.

Power to
divert rivers
streams etc.

(2) In the exercise of the powers conferred by this section the Board shall do as little damage as may be and shall pay compensation to all persons for damage sustained by them or any liability to which they may become subject by reason of the exercise of those powers and any difference as to the amount of the compensation to be paid shall be determined by arbitration.

(3) The provisions of this section shall be in addition to and not in substitution for or in derogation of any other provision of this Act relating to the diversion of rivers streams watercourses or ditches or the acquisition of lands.

19. The provisions of section 145 of the Local Government Act 1933 shall apply with respect to the alteration of any water-course under the powers of section 18 (Power to divert rivers streams etc.) of this Act as if the alteration was done in the exercise of powers conferred by the Land Drainage Act 1930.

Application of
section 145
of Local
Government
Act 1933.

PART II
—cont.Accommoda-
tion for
workmen
employed on
construction
of works.

20.—(1) The Board shall provide and maintain or cause to be provided and maintained for the workmen employed in and about the construction of the works authorised by this Act such accommodation and such arrangements for meals as shall be reasonably necessary having regard to the accommodation available in the neighbourhood of or conveniently accessible from the said works and shall provide and maintain proper and sufficient sanitary accommodation for such workmen.

(2) The medical officer of health of the North Riding County Council or any persons authorised by him shall be entitled at all reasonable times to enter and inspect any accommodation provided under this section in order to ascertain whether overcrowding exists therein and whether proper and sufficient sanitary arrangements are provided.

For protection
of North
Riding
County
Council.

21. For the protection of the North Riding County Council (in this section referred to as “the council”) the following provisions shall unless otherwise agreed in writing between the council and the Board apply and have effect:—

(1) The Board shall during such period as the Balderhead Reservoir (Work No. 1) is in process of construction pay to the council or to the standing joint committee of the North Riding the cost of maintaining such an additional number of police as may be reasonably necessary for the due preservation of order in the area in which the said reservoir is situate in consequence of the construction of the said reservoir:

(2) The Board shall during the said period pay to the council all expenses reasonably incurred by them as local education authority—

(a) in providing and maintaining any additional accommodation of a temporary character which may be necessary for the education of the children or dependents of workmen of the Board their contractors or agents employed in or in connection with the construction of the said reservoir; and

(b) in providing means of transport for such children or dependents to and from the nearest school from and to their places of abode:

(3) In calculating any payment to be made under paragraphs (1) and (2) of this section regard shall be had to any sums receivable by the council or by the standing joint committee of the North Riding by way of specific grant in respect of the cost incurred in maintaining police as mentioned in paragraph (1) and by way of general grant under section 1 of the Local Government Act

1958 in respect of expenses incurred in relation to the children or dependents referred to in paragraph (2) of this section but so that no additional cost shall be imposed upon the council:

PART II
—cont.

- (4) Any difference between the Board and the council or the said standing joint committee under this section shall be determined by arbitration.

22. The following provisions for the protection of the Wear and Tees River Board shall unless otherwise agreed in writing between the Board and the river board apply and have effect:—

For protec-
tion of Wear
and Tees
River Board.

- (1) In this section—

“alter” includes reconstruct or renew;

“apparatus” includes any structure or appliance for controlling or regulating the flow of water into or out of any watercourse and any machinery under the control of the river board;

“the engineer” means the engineer to the river board and includes his duly authorised representative;

“the new intake” means the intake or intakes forming part of Work No. 3 and includes any work in the river connected therewith;

“the river” means the river Tees and its banks (as defined in the Land Drainage Act 1930);

“the river board” means the Wear and Tees River Board:

- (2) No part of the new intake shall be constructed or altered so as to project into the river beyond the face of the existing retaining wall:
- (3) (a) Before commencing to construct or alter the new intake the Board shall submit to the river board plans sections and particulars of the manner of construction or alteration and (if reasonably required by the river board) working drawings thereof and of any temporary works in the river for their reasonable approval. If the river board do not within twenty-one days after the submission to them of any such plans sections and particulars and drawings (if any) signify to the Board in writing their approval or disapproval thereof they shall be deemed to have approved thereof;
- (b) The new intake shall not be constructed or altered otherwise than in accordance with such plans sections and particulars and drawings (if any) as may be approved (or are to be deemed to be approved) by the river board

PART II
—cont.

or if such approval be withheld as may be settled by arbitration as hereinafter provided and shall be constructed or altered to the reasonable satisfaction of the river board:

- (4) The Board shall at all reasonable times afford to the engineer access to the new intake during the construction or alteration thereof for the purpose of inspection and shall comply with any reasonable directions given by the engineer in reference to any works executed in the river:
- (5) Except in cases of emergency the Board shall give fourteen days' notice in writing to the river board before commencing to construct alter or repair the new intake:
- (6) The construction or alteration of any authorised work shall when commenced be continued uninterruptedly so far as may be reasonably practicable until completion:
- (7) The fact that any work or thing has been executed or done in accordance with plans sections and particulars and drawings (if any) approved or not objected to by the river board or to the satisfaction of the river board or in accordance with any directions or award of an arbitrator shall not relieve the Board from any liability to the river board under the provisions of this section:
- (8) The Board shall at all times keep the river board indemnified against all claims damages losses costs and expenses which may be made on or against them or which they may sustain or be liable for or which they may reasonably and properly incur by reason or in consequence of any injury or damage which may be caused or result to any watercourse or apparatus (or any obstruction which may be caused or result in any watercourse) by or in consequence of the construction or alteration of the new intake:

Provided that—

(a) this paragraph shall not impose any liability on the Board to indemnify the river board in respect of so much of any claims damages losses costs and expenses as may be attributable to the act neglect or default of the river board or their agents;

(b) the river board shall give reasonable notice to the Board of any claim which in the opinion of the river board is a claim for which the Board may be liable and no settlement or compromise thereof shall be made without the written consent of the Board:

(9) Except as expressly provided by this Act nothing in this Act shall prejudice lessen or affect any right power or jurisdiction of the river board under the Land Drainage Act 1930:

(10) Nothing in the following sections of this Act (that is to say):—

Section 18 (Power to divert rivers streams etc.);

Section 20 (Accommodation for workmen employed on construction of works);

shall be deemed to affect any obligation of the Board to obtain the consent of the river board under section 7 of the Rivers (Prevention of Pollution) Act 1951 to the bringing into use of any new or altered outlet for the discharge of trade or sewage effluent to a stream or to the beginning of the making of any new discharge of trade or sewage effluent to a stream:

(11) Any difference arising between the river board and the Board under this section (save as to the construction of this section) shall be determined by arbitration.

PART III

LANDS

23.—(1) Subject to the provisions of this Act the Board may ^{Power to} enter upon take and use such of the lands delineated on the ^{acquire lands.} deposited plans and described in the deposited book of reference as may be required for the purpose of the works authorised by this Act or for the purposes of obtaining access thereto obtaining materials for the construction thereof preserving the purity of the waters which may be taken thereby or otherwise for the purposes of the undertaking.

(2) The powers of the Board for the compulsory purchase of land under this section shall cease after the expiration of three years from the first day of October nineteen hundred and fifty-nine.

24.—(1) If the deposited plans or the deposited book of ^{Correction} reference are inaccurate in their description of any land or in ^{of errors in} their statement or description of the ownership or occupation of ^{deposited} any land the Board after giving ten days' notice to the owner ^{plans and} lessee and occupier of the land in question may apply to two ^{book of} justices having jurisdiction in the North Riding for the correction ^{reference.} thereof.

PART III
—cont.

(2) If on any such application it appears to the justices that the misstatement or wrong description arose from mistake the justices shall certify the fact accordingly and shall in their certificate state in what respect any matter is misstated or wrongly described.

(3) The certificate shall be deposited in the office of the Clerk of the Parliaments and copies thereof in the Private Bill Office House of Commons with the clerk of the North Riding County Council and with every clerk of a local authority and chairman of a parish council or parish meeting with whom a copy of the deposited plans has been deposited in accordance with the standing orders of the Houses of Parliament or who has the custody of any such copy so deposited and thereupon the deposited plans and the deposited book of reference shall be deemed to be corrected according to the certificate and it shall be lawful for the Board to take the land and execute the works in accordance with the certificate.

(4) Any certificate or copy deposited under this section with any person shall be kept by him with the other documents to which it relates.

Acquisition
of part only
of certain
properties.

25.—(1) For the purposes of this Act the following provisions of this section shall have effect in substitution for section 92 of the Lands Clauses Consolidation Act 1845.

(2) No person shall be required to sell a part only of any house building or factory or of a park or garden belonging to a house if he is willing and able to sell the whole of the house building factory park or garden unless the Lands Tribunal determines—

- (a) in the case of a house building or factory that such part as is proposed to be taken can be taken without material detriment to the house building or factory; or
- (b) in the case of a park or garden that such part as aforesaid can be taken without seriously affecting the amenity or convenience of the house to which it belongs.

(3) If the Lands Tribunal determines as aforesaid compensation shall be awarded in respect of any loss due to the severance of the part proposed to be taken in addition to the value of that part and thereupon the person interested shall be required to sell to the Board that part of the house building factory park or garden.

Power to
expedite
entry.

26. At any time after serving a notice to treat in respect of any land which may be acquired compulsorily under this Act or in respect of any easement or right in any such land but not less than one month after giving to the owner and occupier of the land notice of their intention to exercise the powers of this section

the Board may enter on and take possession of the land or such part thereof as is specified in the last-mentioned notice or enter on the land in respect of which the easement or right is to be acquired (as the case may be) without previous consent and without compliance with sections 84 to 90 of the Lands Clauses Consolidation Act 1845:

Provided that the Board shall pay the like compensation for land of which possession is taken under this section or for any easement or right acquired and the like interest on the compensation awarded as would have been payable if the provisions of those sections had been complied with.

27.—(1) Any person acting on behalf of the Board and duly authorised by the clerk of the Board may at all reasonable times enter on any land which the Board are authorised by this Act to acquire compulsorily for the purpose of surveying or valuing the land:

Power to
enter for
survey or
valuation.

Provided that no land shall be entered under this section unless the Board not less than seven days before the first entry and not less than twenty-four hours before any subsequent entry have given notice to the owner and occupier of the land.

(2) Any power conferred by this section to survey land shall include power to make trial borings for the purpose of ascertaining the nature of the subsoil:

Provided that no works authorised by this subsection shall be carried out unless notice of the intention to carry out the same has been included in the notice required under subsection (1) of this section.

(3) The Board shall make compensation to the owner and occupier of any land on which works are carried out under subsection (2) of this section for any damage sustained by the owner or occupier by reason of the carrying out of such works (such compensation being determined in case of dispute by the Lands Tribunal) and if the land on which any such works are carried out is not acquired by the Board the Board shall make good and restore the surface of the land.

28. In determining any question of disputed compensation or purchase money in respect of land acquired under this Act the Lands Tribunal shall not take into account—

Disregard of
recent
improvements
and interests.

(a) any improvement or alteration made or building erected after the fifth day of December nineteen hundred and fifty-eight; or

(b) any interest in the land created after the said date;

which in the opinion of the Lands Tribunal was not reasonably necessary and was made erected or created with a view to obtaining or increasing the compensation or purchase money.

PART III

—cont.

Extinction
of private
rights of way.

29.—(1) All private rights of way over any land which may be acquired compulsorily under this Act shall as from the acquisition of the land whether compulsorily or by agreement be extinguished.

(2) Any person who suffers loss by the extinguishment of any right under this section shall be entitled to be paid by the Board compensation to be determined in case of dispute under and in accordance with the Acquisition of Land (Assessment of Compensation) Act 1919 as amended by the Lands Tribunal Act 1949.

Power to
acquire
easements
only.

30.—(1) (a) Instead of acquiring any land which may be acquired under this Act the Board may for the purposes of constructing using and maintaining so much of the works authorised by this Act or works connected therewith as will be constructed underground or the access road (Work No. 2) or for the purpose of otherwise obtaining access to the works authorised by this Act and doing anything necessary in connection therewith acquire such easements and rights in that land as they may require for those purposes.

(b) For the purposes of this section a work shall be deemed to be underground although apparatus or conveniences connected therewith are partly on the surface.

(2) Accordingly the Board may give notice to treat in respect of any such easement or right describing the nature thereof and the provisions of the Lands Clauses Acts shall apply in relation to the acquisition of such easements and rights as if they were lands within the meaning of those Acts.

(3) Where the Board have acquired an easement or right only in any land under this section—

(a) they shall not be required or (except by agreement or during the construction of the said works) entitled to fence off or sever that land from the adjoining land; and

(b) the owner or occupier of the land for the time being shall subject to the easement or right have the same right to use the land as if this Act had not been passed.

(4) If in his particulars of claim the owner of any land in respect of which notice to treat for an easement or right is given under this section requires the Board to acquire the land the Board shall not be entitled under this section to acquire the easement or right unless the Lands Tribunal determines that the easement or right can be granted without material detriment to the land or in the case of a park or garden belonging to a house without seriously affecting the amenity or convenience of the house and if the Lands Tribunal does not so determine the Board may acquire the land compulsorily after the expiration of

the period mentioned in section 23 (Power to acquire lands) of this Act but not later than one year after the determination of the Lands Tribunal:

PART III
—cont.

Provided that nothing in this subsection shall apply to land forming part of a street.

(5) A notice to treat given under this section shall be endorsed with notice of the effect of subsection (4) of this section in cases to which that subsection applies.

31.—(1) The Board may enter into and carry into effect an agreement or arrangement with the owner or occupier of any land acquired under this Act with respect to his reinstatement elsewhere. Power to
reinstate
owners or
occupiers of
property.

(2) Any such agreement may provide for the exchange of land and for that purpose the Board may pay or receive money for equality of exchange.

32.—(1) The Board may pay to any person displaced from any land acquired under this Act such reasonable allowance as they think fit towards any loss or in respect of any personal hardship which in their opinion he will sustain or be put to by reason of his having to quit the land. Allowances
for displaced
persons.

(2) In estimating any such loss or personal hardship the Board shall have regard to the period for which the land occupied by that person might reasonably have been expected to be available for occupation by him and the availability of other land suitable for occupation by him.

(3) The provisions of this section shall be in addition to and not in derogation of any enactment or any rule of law relating to compensation for disturbance.

33.—(1) The Board may enter into and carry into effect agreements with any person being the owner of or interested in any land abutting on any portion either of the works authorised by this Act or of land which may be acquired under this Act with respect to the sale by the Board to him of any land. Agreements
with adjoining
owners.

(2) The Board may accept as satisfaction of the whole or any part of the consideration for any such sale the grant by the purchaser of any land required by the Board for the purposes of this Act or any easement or right so required.

34.—(1) If after the completion of the works authorised by this Act any land acquired under this Act is not required by the Board for the purpose of the undertaking and the Board determine to dispose thereof they shall offer to sell the land to the Sale of
superfluous
land.

PART III
—cont.

person from whom the land was acquired by the Board or to his successor in title as owner of other lands (if any) from which the land was severed on acquisition by the Board:

Provided that nothing in this section shall prevent the Board from disposing of the land in any other manner if after making reasonable inquiries they are unable to find the person to whom they are required to offer to sell the land under this section or if within six weeks after such offer being made that person does not signify his willingness to purchase the land at a price not less than the current market value of the land or if that person is incapable of entering into a contract for the purchase of the land.

(2) Nothing in this section shall prejudice or affect the provisions of section 25 (Retention and disposal of lands) of the Tees Valley Water Act 1930 or section 25 of the Water Act 1945.

PART IV

FINANCIAL PROVISIONS

Power to
borrow.

35.—(1) The Board may borrow—

- (a) such sums as may be necessary for any of the purposes of this Act;
- (b) without the consent of any sanctioning authority for any of the purposes specified in the first column of the following table the sums specified in relation thereto in the second column of that table.

(2) The period for the repayment of a sum borrowed under paragraph (b) of the foregoing subsection shall not exceed the period specified in relation thereto in the third column of the said table.

(3) Subject to the provisions of this section the provisions of Part IX of the Local Government Act 1933 applied to the Board by section 42 (Borrowing powers) of the Tees Valley and Cleveland Water Order 1958 shall have effect as if money borrowed under this section were borrowed under that Part and as if the following table were in the Eighth Schedule to that Act:

Provided that it shall not be obligatory on the Board to commence the repayment (by sinking fund or otherwise) of any moneys to be borrowed under this section (other than moneys borrowed to pay the costs charges and expenses of this Act) until the date of the completion and first filling of the Balderhead Reservoir (Work No. 1) or until the expiration of five years from the date or dates of borrowing (or such longer period as the Minister may allow) whichever shall first happen.

(4) It shall not be lawful to exercise the powers of borrowing conferred by this section (other than the power of borrowing to pay the costs charges and expenses of this Act) except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act 1946.

(1)	(2)	(3)
Purposes for which money may be borrowed	Amount	Maximum period for repayment of loan
(a) The purchase of lands easements and rights for the works authorised by this Act	The sum required	Sixty years.
(b) The construction of Works Nos. 1 and 2	£3,615,000	Sixty years.
(c) The construction of Work No. 3 and the reconstruction enlargement or extension of the pumping station (Work No. 2) authorised by the Tees Valley Water Order 1948 (except the construction of machinery and sterilisation plant) and the construction of mains and other works connected with the Broken Scar pumping station	£375,000	Forty years.
(d) The construction of machinery and sterilisation plant forming part of the Broken Scar pumping station	£285,000	Fifteen years.
(e) The payment out of capital of interest on moneys borrowed for and in connection with the foregoing purposes in accordance with the provisions of section 36 (Payment of interest on moneys borrowed until completion of works) of this Act	The sum required	In relation to the purposes specified in paragraphs (a) and (b) hereof sixty years in relation to the purpose specified in paragraph (c) hereof forty years and in relation to the purpose specified in paragraph (d) hereof fifteen years
(f) The payment of the costs charges and expenses preliminary to and of and incidental to the promotion and obtaining of this Act	The sum required	Five years.

PART IV
—cont.

Payment of
interest on
moneys
borrowed until
completion
of works.

36. Notwithstanding anything in this Act or in any other enactment the Board may pay interest on any moneys borrowed under section 35 (Power to borrow) of this Act (other than on moneys borrowed to pay such interest or to pay the costs charges and expenses of this Act) out of moneys borrowed under the said section 35 for that purpose but only until the date of the completion and first filling of the Balderhead Reservoir (Work No. 1) or until the expiration of five years from the date or dates of borrowing (or such longer period as the Minister may allow) whichever shall first happen.

PART V

MISCELLANEOUS

Use of
sprinklers etc.

37. Notwithstanding anything in section 48 (Additional charges where water supplied for domestic purposes and paid for by water rate is used for other purposes) of the Third Schedule to the Water Act 1945 as applied to the undertaking and incorporated by the Tees Valley Water Order 1957 the Board shall not be bound to supply otherwise than by meter water which is used for watering a garden by means of a sprinkler or other mechanical apparatus.

Effect on
water rates of
alteration of
valuation list.

38.—(1) Where an alteration is made in the valuation list for the time being in force in any rating area within the limits of supply of the Board as from time to time authorised in relation to any premises supplied with water by the Board the alteration shall for the purpose of calculating any amount due in respect of water rate have effect as from the date from which it has effect for the purpose of calculating the amount due in respect of any general rate and notwithstanding the provisions with respect to the equality of instalments of a water rate of section 55 (Making and dates for payment of water rates) of the Third Schedule to the Water Act 1945 as applied to the undertaking and incorporated by the Tees Valley Water Order 1957 any necessary adjustments shall be made in the then current instalments of the water rate and any subsequent instalments thereof.

(2) If it is found that by reason of the foregoing provisions or the provisions of section 56 (Effect on water rates of alteration in valuation list) of the Third Schedule to the Water Act 1945 as applying to the undertaking immediately before the date of the passing of this Act and incorporated by the Tees Valley Water Order 1957 too much or too little has been paid in respect of any water rate the difference shall be repaid or allowed or (as the case may be) shall be paid and may be recovered in the manner in which water rates are recoverable.

(3) In this section the expression "rating area" has the same meaning as in the Rating and Valuation Act 1925.

PART V
—cont.

(4) The said section 56 shall cease to apply to the undertaking.

39.—(1) The enactments mentioned in Part I of the schedule Repeal.
to this Act are hereby repealed.

(2) The enactments mentioned in Part II of the said schedule shall be repealed as on the date of the completion and first filling of the Balderhead Reservoir (Work No. 1).

40. Where under this Act any question or dispute is to be referred to arbitration (other than questions or disputes to which the provisions of the Lands Clauses Acts apply) then unless otherwise provided the reference shall be to a single arbitrator to be agreed upon between the parties to the question or dispute or in default of such agreement appointed by the President of the Institution of Civil Engineers on the application of either party after notice in writing to the other. Arbitration.

41. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act. Saving for town and country planning.

42. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed and ascertained by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Board out of their common fund or out of moneys to be borrowed under this Act. Costs of Act.

SCHEDULE

PART I

ENACTMENTS REPEALED AS FROM THE PASSING OF THIS ACT

Act of 1907—

- Section 32 (Power to take water from river Tees);
- Section 33 (For protection of Darlington Corporation);
- Section 34 (Power to take water from rivers Lune and Balder and other streams);
- Section 47 (Penalty for taking excess of water from river Tees at Broken Scar):

Tees Valley Water Act 1923—

- Section 18 (Chlorination of water from river Tees):

Order of 1948—

- Section 5 (Amendment of section 32 of Act of 1907):

Act of 1953—

- Section 9 (Power to take waters);
- Section 10 (As to taking water from gathering grounds of rivers Lune and Balder):

Tees Valley Water Order 1956:

Tees Valley Water (Broken Scar) (Variation) Order 1957:

Tees Valley Water (Broken Scar) (Variation) Order 1958:

Tees Valley and Cleveland Water Act 1958—

- Section 5 (Amendment of section 34 of the Act of 1907).

PART II

ENACTMENTS REPEALED ON THE DATE OF THE COMPLETION AND FIRST FILLING OF THE BALDERHEAD RESERVOIR (WORK NO. 1)

Act of 1907—

- Section 36 (Compensation for water taken from river Lune);
- Section 37 (Compensation for water taken from river Balder);
- Section 38 (Compensation water to be discharged continuously);
- Section 43 (Penalty in case of failure to discharge compensation water):

Act of 1953—

- Section 11 (As to compensation water);
- Section 12 (Further provisions as to compensation water):

Tees Valley and Cleveland Water Act 1958—

- Section 4 (Relief from obligations with respect to discharge of compensation water into rivers Lune and Balder);

The schedule.



Table of Statutes referred to in this Act.

Short title	Session and chapter
Lands Clauses Consolidation Act 1845 ...	8 & 9 Vict. c. 18.
Railways Clauses Consolidation Act 1845 ...	8 & 9 Vict. c. 20.
Lands Clauses Consolidation Acts Amendment Act 1860	23 & 24 Vict. c. 106.
Telegraph Act 1878	41 & 42 Vict. c. 76.
Tees Valley Water (Consolidation) Act 1907 ...	7 Edw. 7 c. lxxx.
Acquisition of Land (Assessment of Compensation) Act 1919	9 & 10 Geo. 5 c. 57.
Tees Valley Water Act 1923	13 & 14 Geo. 5 c. xxxiii.
Rating and Valuation Act 1925	15 & 16 Geo. 5 c. 90.
Land Drainage Act 1930	20 & 21 Geo. 5 c. 44.
Darlington Corporation Act 1930	20 & 21 Geo. 5 c. cxxi.
Tees Valley Water Act 1930	20 & 21 Geo. 5 c. lxix.
Local Government Act 1933	23 & 24 Geo. 5 c. 51.
Water Act 1945	8 & 9 Geo. 6 c. 42.
Borrowing (Control and Guarantees) Act 1946	9 & 10 Geo. 6 c. 58.
Town and Country Planning Act 1947 ...	10 & 11 Geo. 6 c. 51.
Lands Tribunal Act 1949	12 13 & 14 Geo. 6 c. 42.
Rivers (Prevention of Pollution) Act 1951 ...	14 & 15 Geo. 6 c. 64.
Tees Valley Water Act 1953	1 & 2 Eliz. 2 c. xxxiv.
Town and Country Planning Act 1954 ...	2 & 3 Eliz. 2 c. 72.
Local Government Act 1958	6 & 7 Eliz. 2 c. 55.
Tees Valley and Cleveland Water Act 1958 ...	6 & 7 Eliz. 2 c. xlv.
Town and Country Planning Act 1959	7 & 8 Eliz. 2 c. 53.

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